

Manonmaniam Sundaranar University Act, 1990

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State of Tamilnadu- Act

Manonmaniam Sundaranar University Act, 1990

TAMILNADU

India

Manonmaniam Sundaranar University Act, 1990

Act 31 of 1990

Published on 26 May 1990

Commenced on 26 May 1990

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[Amended by

Tamil Nadu Universities Laws (Third Amendment) Act, 2022 . (Act 2 of 2023)

on

10 January 2023

]

Manonmaniam Sundaranar University Act, 1990

(Tamil Nadu Act

No. 31 of 1990

)

Last Updated 8th February, 2020

[Dated 26.5.1990.]

An Act to provide for the establishment and incorporation of a University at Tirunelveli.

Be it enacted by the Legislative Assembly of the State of Tamil Nadu in the Forty-first year of the Republic of India as follows: -

Chapter I

Preliminary

1.

short title, extent application and commencement.

(1)

This Act may be called the Manonmaniam Sundaranar University Act, 1990.

(2)

It extends to the area comprising the districts of Tirunelveli Kattabomman, Chidambaranar and Kanniyakumari in the State of Tamil Nadu.

(3)

It applies to all colleges and institutions situate within the University area and affiliated to, or approved by, the University in accordance with the provisions of this Act or the statutes, ordinances and regulations made there under and also to all colleges and institutions deemed to be affiliated to, or approved by, the University under this Act.

(4)

This section and sections 2, 3, 4, 5, 8, 9, 10, 11, 12, 13, 14, 15, 17, 18, 45, 54, 55, 56 and 64 shall come into force at once and the rest of this Act shall come into force on such date as the Government may, by notification, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires.

(a)

"affiliated college" means any college, situated within the University area and affiliated to the University and providing courses of study for admission to the examinations for degrees of the University and includes a college deemed to be affiliated to the University under this Act;

(b)

"approved college" means any college situate within the University area and approved by the University and providing courses of study for admission to the examinations for titles and diplomas of the University and includes a college deemed to be approved by the University under this Act;

(c)

"autonomous college" means any college designated as an autonomous college by statutes;

(d)

"college" means any college or any institution maintained or approved by, or affiliated to, the University and providing courses of study for admission to the examinations of the University:

(e)

"Government" means the State Government;

(f)

"hostel" means a unit of residence for the students of the University maintained or recognised by the University in accordance with the provisions of this Act and includes a hostel deemed to be recognised by the University under this Act;

(g)

"notified date" means the date specified in the notification issued under sub-section (4) of section 1;

(h)

"post-graduate college" means a University college or an affiliated college situated within the University area and providing post-graduate courses of study leading up to the post-graduate degrees of the University;

(i)

"prescribed" means prescribed by this Act or the statutes, ordinances or regulations;

(j)

"principal" means the head of a college;

(k)

"professional college" means a college established or maintained by the University or affiliated to the University and providing courses of study leading up to the professional degrees of the University;

(l)

"registered graduate" means a graduate registered under this Act;

(m)

"Statutes", "ordinances", and "regulations" means, respectively, the statutes, ordinances and regulations of the University made or continued in force under this Act;

(n)

"teachers" means such Lecturers Readers, Assistant Professors, Professors and other person giving instruction in University colleges or laboratories, in affiliated or approved colleges, or in hostels, and librarians as may be declared by the statutes to be teachers;

(o)

"Teachers of the University" means persons appointed by the University to give instruction on its behalf;

(p)

"University" means the Manonmaniam Sundaranar University.

(q)

"University area" means the area to which this Act extends under sub-section (2) of section 1;

(r)

"University centre" means any area within the University area recognised by the Government on the recommendation of the University and containing one or more colleges competent to engage in higher teaching and research work and to promote University life in a manner calculated to prepare for the institution of a new University.

(s)

"University college" means a college or a college combined with a research institute maintained by the University, whether instituted by it or not, and providing courses of study leading upto the post-graduate and professional degrees of the University;

(t)

"University Grants Commission" means the Commission established under section 4 of the University Grants Commission Act, 1956 (Central Act 3 of 1956);

(u)

"University laboratory" means a laboratory maintained by the University, whether instituted by it or not, and intended for the carrying on and advancement of research work;

(v)

"University Lecturer", "University Reader" or "University Professor" means a Lecturer, Reader or professor, respectively, appointed or deemed to be appointed as such by the University;

(w)

"University library" means a library maintained by the University, whether instituted by it or not.

Chapter II

The University

3.

The University.

(1)

There shall be a University by the name the Manonmaniam Sundaranar University

(2)

The University shall be a body corporate, shall have perpetual succession and a common seal and shall sue and be sued by the said name.

(3)

The headquarters of the University shall be located within the limits of the Tirunelveli Municipality or in any place within radius of twenty five kilometres around those limits.

4.

Objects and powers of University.

- The University shall have the following objects and powers, and namely

- (1)
to provide for instruction and training in such branches of learning it may determine:
- (2)
to provide for research and for the advancement and dissemination of knowledge:
- (3)
to institute degrees, titles diplomas and other academic distinctions:
- (4)
to hold examinations and to confer degrees, titles, diplomas and other academic distinctions on persons who:
 - (a)
shall have pursued an approved course of study in a University college or laboratory or in an affiliated or approved colleges, unless exempted there from in the manner prescribed by the statutes and shall have passed the prescribed examinations of the University; or
 - (b)
shall have carried on research under conditions prescribed;
- (5)
to confer degrees, titles, diplomas and other academic distinctions on persons who shall have pursued an approved course of study in an autonomous college;
- (6)
to hold examinations and to confer degrees, titles diplomas and other academic distinctions on persons who shall have pursued an approved course of study by correspondence; whether residing within the University area or not, and to provide such lectures and instructions for persons not being residents within the University area under conditions prescribed:
- (7)
to confer honorary degrees or other academic distinctions under conditions prescribed;
- (8)
to institute, maintain and manage institutes of research, University colleges and laboratories, libraries, museums and other institutions necessary to carry out the objects of the University;
- (9)
to affiliate colleges to the University as affiliated, professional or post graduate colleges under conditions prescribed and to withdraw affiliation from colleges;
- (10)
to approve colleges providing courses of study for admission to the examinations for titles and diplomas of the University under conditions prescribed and to withdraw such approval;
- (11)
to designate any college as an autonomous college, with the concurrence of the Government, in the manner and under conditions prescribed and to cancel such designation;
- (12)
to institute lectureships, readerships, professorships and any other teaching posts required by the University and to appoint persons to such lecturer ships, readerships, professorships and other teaching posts;
- (13)
to institute and award fellowships, travelling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes in accordance with the statutes;
- (14)
to establish, maintain and manage hostels, to recognize hostels not maintained by the University and to withdraw recognition there from;
- (15)
to exercise such control over the students of the University through the colleges as will secure their health and well-being and discipline;
- (16)
to hold and manage endowments and other properties and funds of the University;
- (17)

to borrow money, with the approval of the Government, on the security of the property of the University for the purposes of the University;

(18)

to fix fees and to demand and receive such fees as may be prescribed;

(19)

to make grants from the funds of the University for the maintenance of a National Cadet Corps;

(20)

to institute and maintain a University Extension Board;

(21)

to institute and provide funds for the maintenance of-

(a)

a publication bureau;

(b)

an employment bureau;

(c)

students' unions;

(d)

University athletics clubs ; and

(e)

other similar associations;

(22)

to encourage co-operation among the colleges, laboratories and institutes in the University area and co-operate with other Universities and other authorities in such manner and for such purposes as the University may determine;

(23)

to recommend to the Government the recognition of any area within the University area as a University Centre; and

(24)

generally to do all such other acts and things as may be necessary desirable to further the objects of the University.

5.

Colleges not be affiliated to any other University, and recognition of institutions by University.

(1)

No college within the University area shall be affiliated to any University other, than the Manonmaniam Sundaranar University

(2)

No institution affiliated to, or associated with, or maintained by a(sic) other University in the State of Tamil Nadu shall be recognised by the University for any purpose except with the prior approval of the Government and the University concerned.

6.

Disqualification for membership.

(1)

No person shall be qualified for nomination or election as a member of any of the authorities of the University, if on the date of such nomination or election, he is

(a)

of unsound mind or

[a deaf mute;Omitted by Tamil Nadu Universities Laws (Third Amendment) Act, 2022]

or

(b)

an applicant to be adjudicated us an insolvent or an undischarged insolvent; or

(c)

sentenced by a criminal court to imprisonment for any offence involving moral turpitude.

(2)

In case of dispute or doubt as to whether a person is disqualified under sub-section (1), the Syndicate shall determine

and its decision shall be final.

7.

visitation.

(1)

The Chancellor shall have the right to cause an inspection or inquiry to be made, by such person or persons as he may direct, of the University, its buildings, laboratories, libraries, museums, workshops and equipment and of any institution maintained, recognised or approved by, or affiliated to the University and also of the examinations, teaching and other work conducted or done by the University, and to cause an inquiry to be made in respect of any matter connected with the University. The Chancellor shall in every case give notice to the University of his intention to cause such inspection or inquiry to be made and the University shall be entitled to be represented there at.

(2)

The Chancellor shall communicate to the Syndicate his views with reference to the results of such inspection or inquiry and may, after ascertaining the opinion of the Syndicate thereon, advise the University upon the action to be taken and fix a time limit for taking such action.

(3)

The Syndicate shall report to the Chancellor the action, if any, which is proposed to be taken or has been taken /upon the results of such inspection or inquiry. Such report shall be submitted within such time as the Chancellor may direct.

(4)

Where the Syndicate does not take action to the satisfaction of the Chancellor within a reasonable time, the Chancellor may, after considering any explanation furnished or representation made by the Syndicate, issue such directions as he may think fit and the Syndicate shall comply with such directions. In the event of the Syndicate not complying with such directions within such time as may be fixed in that behalf by the Chancellor, the Chancellor shall have power to appoint any person or body to comply with such directions and make such orders as may necessary for the expenses thereof.

8.

Officers of University.

- The University shall consist of the following officers namely:-

(1)

The Chancellor;

(2)

The Pro-Chancellor;

(3)

The Vice-Chancellor;

(4)

The Registrar;

(5)

The Finance Officer;

(6)

The Controller of Examinations; and

(7)

Such other persons as may be declared by the statutes to the officers of the University

9.

The Chancello.

(1)

The Governor of Tamil Nadu shall be the Chancellor University. He shall, by virtue of his office, be the head of the University and shall, when present, preside at any convocation of the University and confer degrees, titles, diplomas or other academic distinctions upon persons entitled to receive them.

(2)

Where power is conferred upon the Chancellor to nominate persons to the authorities, the Chancellor shall, in consultation with the Vice-Chancellor, and to the extent necessary nominate persons to represent interests not otherwise adequately represented.

(3)

The Chancellor may of his own motion or on application call for and examine the record of any officer or authority of the University in respect of any proceedings to satisfy himself as to the regularity of such proceedings or the correctness, legality or propriety of any decision taken or order passed therein, and, if, in any case, it appears to the Chancellor that any such decision or order should be modified, annulled, reversed or remitted for reconsideration, he may pass orders accordingly:

Provided that every application to the Chancellor for the exercise of the powers under this section shall be preferred within three months from the date on which the proceeding, decision or order to which the application relates was communicated to the applicant:

Provided further that no order prejudicial to any person shall be passed unless such person has been given an opportunity of making his representation,

(4)

The Chancellor shall exercise such other powers and perform such other duties as may be conferred on him by or under this Act.

10.

The Pro-Chancellor.

(1)

The Minister in-charge of the portfolio of Education in the State of Tamil Nadu shall be the Pro-Chancellor of the University,

(2)

The Pro-Chancellor shall exercise such powers and perform such duties as may be conferred on him by or under this Act.

11.

The Vice- Chancellor.

(1)

Every appointment of the Vice-Chancellor shall be made by the Chancellor from out of a panel of three names recommended by the Committee referred to in sub-section (2). Such panel shall not contain the name of any member of the said Committee.

(2)

For the purpose of sub-section (1), the Committee shall consist of three persons of whom one shall be nominated by the Government, one shall be nominated by the Senate and one shall be nominated by the Syndicate.

Provided that the person so nominated shall not be a member of any of the authorities of the University,

(3)

The Vice-Chancellor shall hold office for a period of three years and shall be eligible for reappointment for a further period of three years:

Provided that no person shall hold the office of the Vice-Chancellor for more than six years in the aggregate

Provided further that -

(a)

the Chancellor may direct that a Vice-Chancellor, whose term of office has expired, shall continue in office for such period, not exceeding a total period of one year, as may be specified in the direction;

(b)

The Vice-Chancellor may, by writing under his hand addressed to the Chancellor and after giving two months notice, resign his office:

Provided also that a person appointed as Vice-Chancellor shall retire from office if, during the term of his office or any extension thereof, he completes the age of sixty-five years.

(4)

When any temporary vacancy occurs in the office of the Vice-Chancellor or when the Vice-Chancellor is, by reason of illness, absence or for any other reason, unable to exercise the powers and perform the duties of his office, the senior most professor of the University shall exercise the powers and perform the duties of the Vice-Chancellor till the Syndicate makes the requisite arrangements for exercising the powers and performing the duties of the Vice-Chancellor.

(5)

The Vice-Chancellor shall be a whole-time officer of the University and his emoluments and other terms, and conditions

of service shall be as follows: -

(i)

There shall be paid to the Vice-Chancellor a fixed salary of seven thousand six hundred rupees per mensem and he shall be entitled, without payment or rent, to the use of a furnished residence throughout his term of office, and no charge shall fall on the Vice-Chancellor personally in respect of the maintenance of such residence;

(ii)

The Vice-Chancellor shall be entitled to such terminal benefits and allowances as may be fixed by the Syndicate with the approval of the Chancellor from time to time:

Provided that, where an employee of -

(a)

the University; or

(b)

any other University or college or institution maintained by, or affiliated to that University, is appointed as Vice-Chancellor, he shall be allowed to continue to contribute to the Provident Fund to which he is a subscriber, and the contribution of the University shall be limited to what he had been contributing immediately before his appointment as Vice-Chancellor;

(iii)

The Vice-Chancellor shall be entitled to travelling allowances at such rates as may be fixed by the Syndicate;

(iv)

The Vice-Chancellor shall be entitled to earned leave on full pay at one-eleventh of the periods spent by him on active service:

Provided that when the earned leave applied for by the Vice-Chancellor, in sufficient time before the date of expiry of the term of his office, is refused by the Chancellor in the interest of the University and if he does not avail of the leave before the date of expiry of the term of his office he shall be entitled to draw cash equivalent to leave salary after relinquishment of his office in respect of earned leave at his credit subject to a maximum of two hundred and forty days;

(v)

The Vice-Chancellor shall be entitled, on medical grounds or otherwise, to leave without pay for a period not exceeding three months during the term of his office:

Provided that such leave may be converted into leave on full pay to the extent to which he is entitled to earned leave under clause (iv).

12.

power's and duties of vice-Chancellors.

(1)

The Vice-Chancellor shall be the academic head and the principal executive officer of the University and shall, in the absence of the Chancellor, and the Pro-Chancellor, preside at any convocation of the University and confer degrees, titles, diplomas or other academic distinctions upon persons entitled to receive them. He shall be a member ex-officio and Chairman of the Senate, the Syndicate, the Standing Committee on Academic Affairs and the Finance Committee and shall be entitled to be present at, and to address, any meeting of any authority of the University but shall not be entitled to vote thereat, unless he is a member of the authority concerned.

(2)

It shall be the duty of the Vice-Chancellor to ensure that the provisions of this Act, the statutes, ordinances and regulations are observed and carried out and he may exercise all powers necessary for this purpose.

(3)

The Vice-Chancellor shall have power to convene meetings of the Senate, the Syndicate, the Standing Committee on Academic Affairs and the Finance Committee.

(4)

(a)

The Vice-Chancellor shall have power to take action on any matter and shall by order take such action as he may deem necessary but shall, as soon as may be, thereafter report the action taken to the officer or authority or body who or which would have ordinarily dealt with the matter:

Provided that no such order shall be passed unless the person likely to be affected has been given a reasonable

opportunity of being heard;

(b)

When the action taken by the Vice-Chancellor under this sub-section affects any person in the service of the University, such person shall be entitled to prefer an appeal to the Syndicate within thirty days from the date on which he has notice of such action. The Vice-Chancellor shall give effect to the order passed by the Syndicate on such appeal.

(5)

The Vice-Chancellor shall give effect to the orders of the Syndicate regarding the appointment, suspension and dismissal of the teachers and other employees of the University.

(6)

The Vice-Chancellor shall exercise control over the affairs of the University and shall be reasonable for the due maintenance of discipline in the University.

(7)

The Vice-Chancellor shall be responsible for the co-ordination and integration of teaching and research extension education and curriculum development.

(8)

The Vice-Chancellor shall exercise such other powers and perform such other duties as may be prescribed by statutes.

13.

The Registrar.

(1)

The Registrar shall be a whole - time salaried officer of the University appointed by the Syndicate and the terms condition of service of the Registrar shall be as follows:-

(i)

The holder of the post of Registrar shall be an academician not lower in rank than that of Professor of a college affiliated to any University;

(ii)

The Registrar shall hold office for a period of three years:

Provided that the Registrar shall retire on attaining the age of fifty-eight years or on the expiry, of the period specified in this clause, whichever is earlier;

(iii)

The emoluments and other terms and conditions of service of the Registrar shall be such as may be prescribed;

(iv)

When the office of the Registrar is vacant or when the Registrar is, by reason of illness absence or any other cause, unable to perform the duties of his office the duties of the office of the Registrar shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(2)

(a)

The Registrar shall have power to take disciplinary action against such of the employees, excluding teachers of the University and academic staff, as may be specified in the orders of the Syndicate and to suspend them pending inquiry, to administer warnings to them or to impose on them the penalty of censure, or withholding of increments:

Provided that no such penalty shall be imposed unless the person concerned has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him;

(b)

An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in clause (a);

(c)

In any case where the inquiry discloses that punishment beyond the powers of the Registrar is called for, The Registrar shall, upon conclusion of the inquiry, make a report to the Vice-Chancellor along with his recommendations:

Provided that an appeal shall lie to the Syndicate against an order of the Vice-Chancellor imposing any penalty:

(d)

No appeal under clause (b) or clause (c) shall be preferred after the expiry of sixty days from the date on which the order appealed against was received by the appellant.

(3)

The Registrar shall be the ex-officio Secretary to the Senate, the Syndicate, the Faculties and the Boards of Studies, but shall not be deemed to be a member of any of these authorities.

(4)

It shall be the duty of the Registrar. -

(a)

to be the custodian of the records, the common seal and such other property of the University as the Syndicate shall commit to his charge:

(b)

to issue all notices convening meetings of the Senate, the Syndicate, the Faculties, the Boards of Studies, the Boards of Examiners and of any Committee appointed by the authorities of the University;

(c)

to keep the minutes of all the proceedings, of the meetings of the Senate, the Syndicate, the Faculties, the Boards of Studies, the Boards of Examiners and of any Committee appointed by the authorities of the University:

(d)

to conduct the official correspondence of the Syndicate;

(e)

to supply to the Chancellor, copies of the agenda of the meetings of the authorities of the University as soon as they are issued and the minutes of the proceedings of such meetings; and

(f)

to exercise such other powers and perform such other duties as may be specified in the statutes, the ordinances or the regulations or as may be required, from time to time, by the Syndicate or the Vice-Chancellor.

(5)

In all suits and other legal proceedings by or against the University, the pleadings shall be signed and verified by the Registrar and all processes in such suits proceedings shall be issued to, and served on, the Registrar.

14.

The Finance Officer.

(1)

The Finance Officer shall be a whole-time salaried officer of the University appointed by the Syndicate for such period as may be specified by the Syndicate in this behalf.

(2)

Every appointment of the Finance Officer shall be made by the Syndicate from out of a panel of three names recommended by the Government.

(3)

The emoluments and other terms and conditions of service of the Finance Officer shall be such as may be prescribed by the ordinances.

(4)

The Finance Officer shall retire on attaining the age of fifty-eight years or on the expiry of the period specified by the Syndicate under sub-section (1), whichever is earlier.

Provided that the Finance Officer shall, notwithstanding his attaining the age of fifty-eight years, continue in office until his successor is appointed and enters upon his office or until the expiry of a period of one year, whichever is earlier.

(5)

When the office of the Finance Officer is vacant or when the Finance Officer is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the Finance Officer shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(6)

The Finance Officer shall be the ex-officio Secretary to the Finance Committee, but shall not be deemed to be a member of such Committee.

(7)

The Finance Officer shall, -

(a)

exercise general supervision over the funds of the University and shall advise the University as regards its financial policy; and

(b)

exercise such other powers and perform such other financial functions as may be assigned to him by the Syndicate or as may be prescribed by the statutes or the ordinances:

Provided that the Finance Officer shall not incur any expenditure or make any investment exceeding such amount as may be prescribed without the previous approval of the Syndicate.

(8)

Subject to the control of the Syndicate, the Finance Officer shall,

(a)

hold and manage the property and investments of the University including trust and endowed property;

(b)

ensure that the limits fixed by the Syndicate for recurring and non-recurring expenditure for a year are not exceeded and that all moneys are expended on the purposes for which they are granted or allotted;

(c)

be responsible for the preparation of annual accounts, financial estimates and the budget of the University and for their presentation to the Syndicate,

(d)

keep a constant watch on the cash and bank balances and of investments;

(e)

watch the progress of the collection of revenue and advice on the methods of collection employed;

(f)

ensure that the registers of buildings, land, furniture and equipments are maintained up-to-date., and that stock checking is conducted of equipments and other consumable materials in all offices, special centres, specialised laboratories and colleges maintained by the University;

(g)

bring to the notice of the Vice-Chancellor any unauthorised expenditure or other financial irregularity and suggest appropriate action to be taken against persons at fault; and

(h)

call from any office, centre, laboratory and college maintained by the University any information or returns that he may consider necessary for the performance of his duties.

(9)

The receipt of the Finance Officer or of the person or persons duly authorised in this behalf by the Syndicate for any money payable to the University shall be sufficient discharge for payment of such money.

15.

The Controller of Examinations.

(1)

The Controller of Examinations shall be a whole time office. The Controller of the University appointed by the Syndicate for such period and on such term the and conditions as may be prescribed.

(2)

The Controller of Examinations shall exercise such powers and perform such duties as may be prescribed.

16.

Authorities of Universities.

- The authorities of the University shall be the Senate the Syndicate, the Standing Committee on Academic Affairs the Faculties, the Boards of Studies, the Finance Committee the Planning Board and such other authorities as may be declared by the statutes to be authorities of the University.

17.

The Planning Board.

(1)

There shall be constituted a Planning Board of the University which shall advise generally on the planning and development of the University and keep under review the standard of education and research in the University.

(2)

The Planning Board shall consist of the following members, namely:-

(i)

the Vice-Chancellor, who shall be the ex-officio Chairman of the Board; and

(ii)

not more than eight persons of high academic standing.

(3)

The members of the Planning Board shall be appointed by the Chancellor and shall hold office for such period as he may determine.

(4)

The Planning Board shall, in addition to all other powers vested in it by this Act, have the right to advise the Syndicate and the Standing Committee on Academic Affairs on any academic matter.

Vice-Chancellor and other officers, etc. to be Public servants.

18.

General Act XLV of 1860.

- The Vice-Chancellor, the Registrar, the Finance Officer, the Controller of Examinations and other employees of the University shall be deemed, when acting or purporting to act in pursuance of any of the provisions of this Act, to be public servants within the meaning of section 21 of the Indian Penal Code.

Chapter III

The Senate and The Standing Committee On Academic Affairs.

Powers and Duties

19.

The Senate.

(a)

The Senate shall consist of the following members, namely:-

Class I - Ex - officio Members.

(1)

The Chancellor;

(2)

The Pro - Chancellor;

(3)

The Vice-Chancellor;

(4)

The Director of Collegiate Education:

(5)

The Director of School Education; (incharge of Higher Secondary Education);

(6)

The Director of Technical Education;

(7)

The Director of Legal Studies.

(8)

The Director of Medical Education;

(9)

Heads of University Departments of Study and Research;

(10)

Principals of all affiliated colleges;

(11)

The Librarian of the University Library;

(12)

The Director of Physical Education of the University; and

(13)

Members of the Syndicate who are not otherwise members of the senate.

Class II - Other Members.

(1)

One member elected by teachers of each affiliated college;

(2)

One member elected from among themselves by the Secretaries of college committees of the private colleges, as defined in the Tamil Nadu Private Colleges (Regulations) Act 1976 (President's Act

19 of 1976

) within the University area;

(3)

One member elected by Headmasters of Higher Secondary Schools in each revenue district within the University area;

(4)

Two members elected by registered graduates in each revenue district within the University area from among themselves;

(5)

Two members elected by the members of the Tamil Nadu Legislative Assembly from among themselves.

(6)

Not more than eight members nominated by the Chancellor representing.

(i)

recognised research Institutions;

(ii)

recognised cultural associations;

(iii)

Chambers of Commerce;

(iv)

Industries;

(v)

Authors;

(vi)

Journalists;

(vii)

Lawyers;

(viii)

Sports;and

(7)

(a)

Six members nominated by the Pro-Chancellor of whom not less than three shall be nominated to secure the representation of the Scheduled Castes and Scheduled Tribes not otherwise adequately represented.

(b)

Save as otherwise provided, elected and nominated members of the Senate shall hold office for a period of three years: Provided that where an elected or a nominated member of the Senate is appointed temporarily to any of the offices by virtue of which he is entitled to be a member of the Senate ex-officio, he shall, by notice in writing signed by him and communicated to the Vice-Chancellor within seven days from the date of his taking charge of his appointment, choose whether he will continue to be a member of the Senate by virtue of his election or nomination or whether he will vacate office as such member and become a member ex-officio by virtue of his appointment and the choice shall be conclusive. On failure to make such a choice, he shall be deemed to have vacated his office as an elected or a nominated member.

(c)

When a person ceases to be a member of the Senate he shall cease to be a member of any of the authorities of the University of which he may happen to be a member by virtue of his membership of the Senate.

(d)

The Vice-Chancellor shall be the ex-officio Chairman of the Senate.

(e)

The members of the Senate shall not be entitled to receive any remuneration from the University except such daily and travelling allowances as may be prescribed.

Provided that nothing contained in this sub-section shall preclude any member from drawing his normal emoluments to which he is entitled by virtue of the office he holds.

(f)

A member of the Senate other than an ex-officio member, may tender resignation of his membership at any time before the term of his office expires. Such resignation shall be conveyed to the Chancellor by a letter in writing by the member and the resignation shall take effect from the date of its acceptance by the Chancellor.

20.

senate to review the board policies and programmes of university.

- Subject to the other provisions of this Act, the Senate shall have Senate to review following powers and functions, namely:- the broad and programmes of University

(a)

to review, from time to time, the broad policies and programmes of the University and to suggest measures for the improvement and development of the University;

(b)

to advice the Chancellor in respect of any matter, which may be referred to it for advise, and

(c)

to exercise such other powers and perform such other functions as may be prescribed by the statutes.

21.

Meeting of senate.

(1)

The Senate shall meet atleast twice in every year on dates to fixed by the Vice-Chancellor, One of such meetings shall be called the annul meeting. The Senate may also meet at such other times as it may, from time time, determine.

(2)

One-third of the total strength of the members of the Senate shall be the quorum required for a meeting of the Senate:

Provided that such quorum shall not be required at a convocation of the University or a meeting of the Senate, held for the purpose of conferring degrees, titles, diplomas or other academic distinctions.

(3)

The Vice-Chancellor may, whenever he thinks fit, and shall upon a requisition in writing signed by not less than fifty present of the total members of the Senate convene a special meetings of the Senate.

22.

The Standing Committee on Academic Affairs.

(1)

There shall be a Standing Committee on Academic Affairs of the University which shall, subject to the provisions of this Act, Statues and the ordinances, co-ordinate and exercise general supervision over the academic affairs of the University.

(2)

(a)

The Standing Committee on Academic Affairs shall, in addition to the Vice-Chancellor, consist of the following members, namely:-

Class I - Ex-officio Members.

(1)

The Director of Collegiate Education.

(2)

The Director of Technical Education.

(3)

The Director of Medical Education.

(4)

The Chairmen of all Boards for Under graduate and Post-graduate courses of studies, and

(5)

The Deans of all Faculties,
Class II - Other Members.

Two members elected by principals of affiliated college from among themselves in accordance with the system of proportional representation by means of the single transferable vote.

(b)

The Vice-Chancellor shall be the ex-officio Chairman of the Standing Committee on Academic Affairs.

(c)

The members of the Standing Committee on Academic Affairs, other than the ex-officio members, shall hold office for a period of three years:

Provided that where an elected member of the standing Committee on Academic Affairs is appointed temporarily to any of the offices by virtue of which he is entitled to be a member of the Standing Committee on Academic Affairs ex-officio, he shall by notice in writing signed by him and communicated to the Vice-Chancellor within seven days from the date of his taking charge of his appointment, choose whether he will continue to be a member of the Standing Committee on Academic Affairs by virtue of his election or whether he will vacate his office as such member and become a member ex-officio by virtue of his appointment and the choice shall be conclusive. On failure to make such a choice, he shall be deemed to have vacated his office as an elected member.

(d)

The member of the Standing Committee on Academic Affairs shall not be entitled to receive any remuneration from the University except such daily and travelling allowances as may be prescribed:

Provided that nothing contained in this clause shall preclude any member from drawing his normal emoluments to which he is entitled by virtue of the office he holds.

(e)

A member of the Standing Committee on Academic Affairs, other than ex-officio member, may tender resignation of his membership at any time before the term of his office expires. Such resignation shall be conveyed to the chancellor by a letter in writing by the member, and the resignation shall take effect from the date of its acceptance by the Chancellor.

(3)

The powers and Duties of the Standing Committee on Academic Affairs shall be such as may be prescribed by the statutes.

Chapter IV

The Syndicate

23.

The Syndicate.

(a)

The Chancellor shall, as soon as may be after the first Vice Chancellor is appointed under section 54, constitute the Syndicate.

(b)

The Syndicate shall, in addition to the Vice-Chancellor, consist of the following members, namely:-

Class I - Ex-officio Members.

(1)

The Secretary to Government in-charge of Education.

(2)

The Secretary to Government in-charge of Health and Family Welfare.

(3)

The Secretary to Government in-charge of law.

(4)

The Director of Collegiate Education;

(5)

The Director of Technical Education;

(6)

The Director of Medical Education; and

(7)

The Director of Legal-Studies.

Class II - Other Members.

(1)

Two members elected by principals of affiliated colleges from among themselves in accordance with the system of proportional representation by means of the single transferable vote;

(2)

Two members elected by teachers of affiliated colleges, other than principals, from among themselves who are members of the Senate, in accordance with the system of proportional representation by means of the single transferable vote.

Explanation. - For the purpose of this item "teachers" shall mean those teachers elected to the Senate by the teachers of the affiliated colleges from among themselves.

(3)

One University Professor for every ten Heads of Departments of study and research, schools of excellence or centres of advanced studies, or part thereof, to be nominated by rotation among such Departments, schools and centres by the Chancellor on the recommendation of the Vice-Chancellor,

(4)

One member, not falling under any of the above three categories, elected by the Senate from among its members;

(5)

Three members from among the Academic Experts nominated by the Chancellor;

(6)

One University Reader nominated by the Experts nominated by the Chancellor by rotation according to seniority; and

(7)

One University Lecturer nominated by the Vice-Chancellor by rotation according to seniority; and

(c)

The Vice-Chancellor shall be the ex-officio Chairman of the Syndicate.

(d)

In case the Secretary to Government in-charge of Education, or the Secretary to Government in-charge of Health and Family Welfare, or the Secretary to Government in-charge of Law, is unable to attend the meetings of the Syndicate for any reason, he may depute any officer of his Department not lower in rank than that of Deputy Secretary to Government to attend the meetings.

(e)

Save as otherwise provided, the members of the Syndicate, other than the ex-officio members, shall hold office of a period of three years:

Provided that where an elected or a nominated member of the Syndicate is appointed temporarily to any of the offices by virtue of which he is entitled to be a member of the Syndicate ex-officio he shall, by notice in writing signed by him and communicated to the Vice-Chancellor within seven days from the date of his taking charge of his appointment, choose whether he will continue to be a member of the Syndicate by virtue of his election or nomination or whether he will vacate office as such member and become a member ex-officio by virtue of his appointment and the choice shall be conclusive. On failure to make such a choice, he shall be deemed to have vacated his office as an elected or a nominated member.

(f)

When a person ceases to be a member of the Syndicate, he shall cease to be a member of any of the authorities of the University of which he may happen to be a member by virtue of his membership of the Syndicate.

(g)

The members of the Syndicate shall not be entitled to receive any remuneration from the University except such daily and travelling allowances as may be prescribed:

Provided that nothing contained in this clause shall preclude any member from drawing his normal emoluments to which he is entitled by virtue of the office he holds.

(h)

A member of the Syndicate, other than ex-officio member may tender resignation of his membership at any time before

the term of his office expires. Such resignation shall be conveyed to the Chancellor by a letter in writing by the member, and the resignation shall take effect from the date of its acceptance by the Chancellor.

24.

Powers of Syndicate.

(a)

The Syndicate shall have the following powers namely;-

(1)

to make statutes and amend or repeal the statutes.

(2)

to make ordinances and amend or repeat the same:

(3)

to co-operate with other Universities, other academic authorities and colleges in such manner and for such purposes as it may determine:

(4)

to provide for instruction and training in such branches of learning as it may think fit:

(5)

to prescribe the conditions for approving colleges or institutions in which provision is made for the preparation of students for titles or diplomas of the University and to withdraw such approval:

(6)

to provide for research and advancement and dissemination of knowledge.

(7)

to institute lecturer ships, readerships, professorships and any other teaching posts required by the University:

(8)

to prescribe the conditions for affiliating colleges to the University and to withdraw affiliation from colleges;

(9)

to prescribe the manner in which, and the conditions subject to which, a college may be designated as an autonomous college and such designation may be cancelled;

(10)

to provide such lectures and instructions for students of University Colleges, affiliated colleges and approved colleges as the Senate may determine and also to provide for lectures and instructions to persons not being students of colleges and to grant diplomas to them;

(11)

to institute degrees, titles, diplomas and other academic distinctions;

(12)

to confer degrees, titles, diplomas and other academic distinctions on persons who-

(a)

shall have pursued an approved course of study in University college or laboratory or in an affiliated or approved college or have been exempted there from in the manner prescribed and shall have passed the prescribed examinations of the University.

(b)

shall have carried on research under conditions prescribed;

(13)

to confer honorary degrees or academic distinctions on the recommendation of not less than two thirds of the members of the Syndicate;

(14)

to establish and maintain hostels;

(15)

to institute fellowships, travelling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes;

(16)

to prescribe the fees to be charged for the approval and affiliation of colleges, for admission to the examinations, degrees, titles and diplomas of the University, for the registration of graduates, for the renewal of such registration and

for all or any of the purposes specified in section 4;

(17)

to consider, and take such action as it may deem fit on the annual report, the annual accounts and the financial estimates;

(18)

to institute a University Extension Board and to maintain it;

(19)

to institute publication bureau, student's unions, employment bureau and University athletic clubs and to maintain them;

(20)

to enter into any agreement with the central or any State Government or with a private management for assuming the management of any institution and for taking over its properties and liabilities or for any other purpose not repugnant to the provisions of this Act;

(21)

to make statutes regulating the method of election to the authorities of the University and the procedure at the meeting of the Senate, Syndicate and other authorities of the University and the quorum of members required for the transaction of business by the authorities of the University other than the Senate;

(22)

to recommend to the Government the recognition of an area within the University area as University Centre;

(23)

to hold, control and administer the properties and funds of the University;

(24)

to direct the form, custody and use of the common seal of the University;

(25)

to regulate and determine all matters concerning the University in accordance with this Act, the statute, the ordinances and the regulations;

(26)

to administer all properties and funds placed at the disposal of the University for specific purposes;

(27)

(a)

to appoint the University Lecturers, University Readers, University Professors and the Teachers of the University, fix their emoluments, if any, define their duties and the conditions of their services and provide for filling up of temporary vacancies.

(b)

to make ordinances specifying the mode of appointment of administrative and other similar posts and fix their emoluments, if any, define their duties and the conditions of their services and provide for filling up of temporary vacancies;

(28)

to suspend and dismiss the University Lecturers, University Readers, University Professors and the teachers and other employees of the University;

(29)

to accept on behalf of the University endowments, bequests, donations, grants and transfers of any movable and immovable properties made to it:

Provided that all such endowments, bequests, donations, grants and transfers shall be reported to the Senate at its next meeting;

(30)

(i)

to raise, on behalf of the University, loans from the Central or any State Government or the public or any corporation owned or controlled by the Central or any State Government;

(ii)

to borrow money, with the approval of the Government, on the security of the property of the University for the purposes of the University;

(31)

to affiliate colleges within the University area to the University and to recognize colleges as approved colleges;

(32)

to designate any college as an autonomous college with the concurrence of the Government and to cancel such designation;

(33)

to recognise hostels not maintained by the University and to suspend or withdraw recognition of any hostel which is not conducted in accordance with the ordinances and the conditions imposed thereunder,

(34)

to arrange for and direct, the inspection of all University colleges, affiliated and approved colleges and hostels;

(35)

to prescribe the qualifications of teachers in University colleges, affiliated and approved colleges and hostels;

(36)

to award fellowships, travelling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes in accordance with the statutes;

(37)

to charge and collect such fees as may be prescribed;

(38)

to conduct the University examinations and approve and publish the results thereof;

(39)

to make ordinances regarding the admission of students to the University or prescribing examinations to be recognized as equivalent to University examinations;

(40)

to appoint members to the Boards of Studies

(41)

(i)

to appoint examiners, after consideration of the recommendations of the Boards of Studies, and

(ii)

to fix their remuneration;

(42)

to supervise and control the residence and discipline of the students of the University and make arrangements through the colleges for securing their health and well-being.

(43)

to institute and manage University Centres, University Colleges and laboratories, libraries, museums, institutes, of research and other institutions established or maintained by the University;

(44)

to manage hostels Instituted by the University;

(45)

to regulate the working of the University Extension Board;

(46)

to manage any publication bureau, students' Unions, employment bureau and University athletic clubs instituted by the University;

(47)

to review the instruction and teaching of the University.

(48)

to promote research within the University and to require reports, from time to time, of such research;

(49)

to exercise such other powers and perform such other duties as may be conferred or imposed on it by this Act or the statutes, ordinances or regulations; and

(50)

(a)

to delegate any of its powers to the Vice-Chancellor, to a committee from among its own members or to a committee appointed in accordance with the statutes.

(b)

The Syndicate may consult the Standing Committee on Academic Affairs in respect of any academic matter, where it considers such consultation necessary.

25.

Meeting of the Syndicate.

(1)

The Syndicate shall meet at such times and places and shall, subject to the provisions of sub-sections (2) and (3), observe such rules of procedure in regard to transaction of business at its meetings including the quorum at meetings as may be prescribed:

Provided that the Syndicate shall meet at least once in every three months.

(2)

The Vice-Chancellor, or in his absence any member chosen by the members present, shall preside at a meeting of the Syndicate.

(3)

All questions at any meeting of the Syndicate shall be decided by a majority of the votes of the members present and voting and in the case of an equality of votes, the Vice-Chancellor or the member presiding, as the case may be, shall have and exercise a second or casting vote.

(4)

(a)

The Syndicate may, for the purpose of consultation, invite any person having special knowledge or practical experience in any subject under consideration to attend to any meeting. Such person may speak in, and otherwise take part in, the proceedings of such meeting but shall not be entitled to vote.

(b)

The person so invited shall be entitled to such daily and travelling allowances as are admissible to a member of the Syndicate.

26.

Annual Report.

- The annual report of the University shall be prepared by the Syndicate and shall be submitted to the Senate on or before (sic) as may be prescribed by the statutes and shall be considered by the Senate at its next annual meeting. The Senate may pass resolutions thereon and communicate the same to the Syndicate which shall take action in accordance therewith. The Syndicate shall inform the Senate of the action taken by it. A copy of the report with a copy of the resolutions thereon, if any, of the Senate shall be submitted to the Government for information.

27.

Annual Accounts.

(1)

The annual accounts of the University shall be submitted to such examination and audit as the Government may direct and copy of the annual accounts and audit report shall be submitted to the Government.

(2)

The University shall settle objections raised in such audit and carry out such instructions as may be issued by the Government on the audit report.

(3)

The accounts, when audited shall be published by the Syndicate in such manner as may be prescribed by the ordinance and copies thereof shall be submitted to the Senate at its next meeting and to the Government within three months of such publication.

Chapter V

The Faculties, The Boards of Studies, The Finance Committee and Other Authorities

28.

Constitution and Functions of Faculties.

(1)

The University shall include faculties of Arts, Science, Law, Engineering and Technology, Education, Commerce, Indian and other Languages, Fine Arts and such other Faculties as may be prescribed by the statutes.

(2)

The constitution and functions of the Faculties shall, in all other respects, be such as may be prescribed by the regulations.

(3)

Notwithstanding anything contained in sub section (2), the Standing Committee on Academic Affairs may, on the recommendations of the Syndicate, appoint any teacher of the University as a member of a Faculty.

(4)

Each Faculty shall comprise such departments of teaching as may be prescribed by the statutes.

29.

The Boards of Studies.

- There shall be Boards of Studies attached to each department of teaching. The constitution and powers of the Boards of Studies shall be such as may be prescribed by the ordinances.

30.

Constitution of other Authorities.

- The constitution and powers of such other bodies as may be declared by the statutes to be authorities of the University shall be such as may be prescribed.

31.

The Finance Committee.

(1)

The Finance Committee shall consist of the following members, namely:-

(i)

The Vice-Chancellor;

(ii)

The Secretary to Government in-charge of Finance;

(iii)

The Secretary to Government in-charge of Education;

(iv)

Three members nominated by the Syndicate from among its members of whom one shall be a Professor and one shall be a person nominated to the Syndicate by the Chancellor;

(2)

If for any reason the officer referred to in clause (ii) or clause (iii) of sub-section (1) is unable to attend any meeting of the Finance Committee, he may depute any officer of his Department not lower in rank than that of Deputy Secretary to Government to attend such meeting. The officer so deputed shall have the right to take part in the discussions of the Committee and shall have the right to vote.

(3)

The Vice-Chancellor shall be the ex-officio Chairman of, and the Finance Officer shall be the ex-officio Secretary to, the Finance Committee.

(4)

All the members of the Finance Committee, other than the ex-officio members, shall hold office for a period of three years.

(5)

The Finance Committee shall meet at least twice in every year to examine the accounts and to scrutinise proposals for expenditure.

(6)

The annual accounts of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments and there after submitted to the Syndicate for approval.

(7)

The Finance Committee shall recommend limits for the total recurring expenditure and the total non-recurring expenditure for the year based on the income and resources of the University which, in the case of productive works,

may include the proceeds of loans.

(8)

The Finance Committee shall-

(a)

review the financial position of the University from time to time;

(b)

make recommendation to the Syndicate on every proposal involving investment on expenditure for which no provision has been made in the annual financial estimates or which involves expenditure in excess of the amount provided for in the annual financial estimates;

(c)

prescribe the methods and procedures and forms for maintaining the accounts of the University and colleges;

(d)

make recommendation to the Syndicate on all matters relating to the finances of the University; and

(e)

perform such other functions as may be prescribed.

(9)

The financial estimates of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments. The said estimates, as modified by the Finance Committee, shall then be laid before the Syndicate for consideration. The Syndicate may accept the modifications made by the Finance Committee.

Chapter VI

Statutes, Ordinances and Regulations

32.

Statutes.

- Subject to the provisions of this Act, the statutes may provide for all or any of the following matters, namely:-

(i)

the holding of convocation to confer degrees;

(ii)

the conferment of honorary degrees and academic distinctions;

(iii)

the constitutions, powers and functions of the authorities of the University;

(iv)

the manner of filling vacancies among members of the authorities.

(v)

the allowances to be paid to the members of the authorities and committees thereof;

(vi)

the procedure at meetings of the authorities including the quorum for the transactions of business at such meetings;

(vii)

the authentication of the orders of decisions of the authorities;

(viii)

the formation of departments of teaching at the University and the University colleges;

(ix)

the term of office and methods of appointment and conditions of service of the officers of the University other than the Chancellor and the Pro-Chancellor;

(x)

the qualifications of the teachers and the other persons employed by the University;

(xi)

the classification, the method of appointment and determination of the terms and conditions of service of teachers and other persons employed by the University;

(xii)

the institution of pension, gratuity, insurance or provident fund for the benefit of the officers, teachers and other persons employed by the University.

(xiii)

the institution of fellowships, travelling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes and conditions of award thereof;

(xiv)

the establishment and maintenance of halls, hostels and laboratories;

(xv)

the conditions for residence of students of the University in the halls and hostels and the levy of fees and other charges for such residence;

(xvi)

the conditions of registration of graduates and the maintenance of register thereof;

(xvii)

the conditions of recognition of approved colleges and of affiliation to the University of affiliated colleges;

(xviii)

the manner in which, and the conditions subject to which, a college may be designated as an autonomous college or the designation of such college may be cancelled and the matters incidental to the administration of autonomous colleges including the constitution or reconstitution, powers and ordinances duties of Standing Committee on Academic Affairs, Staff Council, Boards of Studies and Boards of Examiners;

(xix)

the delegation of powers vested in the authorities or officers of the University; and

(xx)

any other matter which is required to be or may be prescribed by the statutes.

33.

Statutes, how made.

(1)

the Syndicate may, from time to time, make statutes and amend or repeal the statutes in the manner hereafter provided in this section.

(2)

The Standing Committee on Academic Affairs may propose to the Syndicate the draft of any statute or of any amendment to, or of repeal of, a statute to be passed by the Syndicate and such draft shall be considered by the Syndicate at its next meeting.

Provided that the Standing Committee on Academic Affairs shall not propose, the draft of any statute or of any amendment to, or of repeal of, a statute relating to matters other than academic affairs.

(3)

The Syndicate may consider the draft proposed by the Standing Committee on Academic Affairs under sub-section (2) and may either pass the draft or reject or return it with or without amendments to the Standing Committee on Academic Affairs for reconsideration.

(4)

(a)

Any member of the Syndicate may propose to the Syndicate the draft of a statute or of any amendment to, or of repeal of, a statute and the Syndicate may either accept or reject the draft, if it relates to a matter not falling within the purview of the Standing Committee on Academic Affairs;

(b)

In case such draft relates to a matter within the purview of the Standing Committee on Academic Affairs, the Syndicate shall refer it for consideration to the Standing Committee on Academic Affairs, which may either report to the Syndicate that it does not approve the draft or submit the draft to the Syndicate in such form as the Standing Committee on Academic Affairs may approve and the Syndicate may either pass with or without amendment or reject the draft.

(5)

A statute or an amendment to, or repeal of, a statute passed by the Syndicate shall be submitted to the Chancellor who may assent thereto or with-hold his assent. A statute or an amendment to, or repeal of, a statute passed by the Syndicate shall have no validity until it has been assented to by the Chancellor.

34.

ordinances.

- Subject to the provisions of this Act, and the statutes, the ordinances may provide for all or any of the following matters, namely:-

(i)

The admission of students to the University and its approved or affiliated colleges and the levy of fees in University colleges and laboratories;

(ii)

the courses of study leading to all degrees, titles, diplomas and other academic distinctions of the University;

(iii)

the conditions of residence of students of the University and the levy of fees for residence in hostels maintained by the University;

(iv)

the conditions of recognition of hostels not maintained by the University;

(v)

the conditions under which the students shall be admitted to the courses of study leading to degrees, titles, diplomas and other academic distinctions of the University;

(vi)

the conduct of examinations of the University and the conditions on which students shall be admitted to such examinations;

(vii)

the manner in which exemption relating to the admission of students to examinations may be given;

(viii)

the conditions and mode of appointment and duties of examining bodies and examiners;

(ix)

the maintenance of discipline among the students of the University;

(x)

the fees to be charged for courses of study, research, experiment and practical training and for admission to the examinations for degrees, titles, diplomas and other academic distinctions of the University;

(xi)

the qualifications and emoluments of teachers of the University;

(xii)

the conditions subject to which persons who may hereafter be permanently employed may be recognised as qualified to give instruction in affiliated and approved colleges and hostels; and

(xiii)

any other matter which by this Act, or the statutes is required to be or may be prescribed by the ordinances.

35.

Ordinances how made.

(1)

In making ordinances, the Syndicate shall consult:-

(i)

the Boards of Studies when such ordinances affect the appoints and duties of examiners; and

(ii)

the Standing Committee on Academic Affairs when they affect the conduct or standard of examinations, or the conditions of residence of students.

(2)

All ordinances made by the Syndicate shall have effect from such date as it may direct, but every ordinance so made shall be submitted, as soon as may be, to the Chancellor and the Senate and shall be considered by the Senate at its next succeeding meeting.

(3)

The Chancellor may direct that the operation of any ordinance shall be suspended until such time as the Senate has had an opportunity of considering the same.

36.

Regulation how made.

(1)

The Standing Committee on Academic Affairs may make regulations consistent with this act, the Statutes and the ordinances to carry out the duties assigned to it there under.

(2)

All such regulations shall have effect from such date as the Standing Committee on Academic Affairs may direct but every regulations so made be submitted, as soon as may be, to the Senate for its consideration at its next succeeding meeting.

Chapter VII

Admission and Residence of Students

37.

Admission to University courses.

(1)

No person shall be admitted to a course of study in the University for admission to the examinations for degrees, titles, or diplomas of the University unless he:-

(i)

has passed the examination prescribed therefore; and

(ii)

fulfils such other conditions as may be prescribed by the University.

(2)

Every candidate for a University examination shall, unless exempted from the provisions of this sub-section by a special order of the Syndicate made on the recommendation of the Standing Committee on Academic Affairs, be enrolled as a member of a University college or laboratory or of an affiliated or approved college. Any such exemption may be made subject to such conditions as the Syndicate may think fit.

(3)

Students exempted from the provisions of sub-section (2) and students admitted, in accordance with the conditions prescribed, to courses of study other than courses of study for a degree shall be non-collegiate students of the University.

38.

Admission to University Examinations.

- No candidate shall be admitted to any University examination unless he is enrolled as a member of a University college or laboratory or of a affiliated or approved college and has satisfied the requirements as to the attendance required under the regulations for the same or unless he is exempted from such requirements of enrolment or attendance or both by an order of the Syndicate passed on the recommendation of the Standing Committee on Academic Affairs made under this section shall be subject to such conditions as the Syndicate may think fit.

39.

Attendance qualifying for University Examinations.

- No attendance at instruction given in any college or institution, other than that conducted, affiliated or approved by the University, shall qualify admission to any examination of the University.

40.

Residences and Hostels.

- Every student of the University other than a non-collegiate study shall be required to reside in a hostel or under such other conditions as may prescribed.

Chapter VIII

University Funds

41.

General Fund.

- The University shall have a General Fund to which shall be credited:

(a)

its income from fees, grants, donations and gifts, if any;

(b)

any contribution or grant made by the Central Government, State Government, the University Grant Commission or like authority, any local authority or any corporation owned or controlled by the Government; and

(c)

endowments and other receipts.

Chapter IX

Conditions of Service

42.

Pension and gratuity, etc.

(1)

The University shall institute for the benefit of its officers, teachers and other persons employed by the University, such pension, gratuity insurance and provident fund as it may deem, fit, in such manner and subject to such conditions, as may be prescribed.

(2)

Where the University has so instituted a Provident Fund under sub-section (1), the Government may declare that the provisions of the Provident Funds Act, 1925 (Central Act of 1925) shall apply to such funds as if the University were a local authority and the fund a Government Provident Fund.

(3)

The University may, in consultation with the Finance Committee, invest the provident fund amount in such manner as it may determine.

43.

Conditions of service.

- Subject to the provisions of this Act, the appointment, procedure for selection, pay and allowances and other conditions of service of Officers, teachers and other persons employed in the University shall be such as may be prescribed.

Explanation. - For the purposes of this section, the word "officers" shall not include the Chancellor and the pro-Chancellor.

44.

Selection Committee.

(1)

There shall be Selection Committee for making recommendations to the Syndicate for appointment to the posts of Professor, Assistant Professor, Reader, Lecturer and Librarian of Institutions maintained by the University.

(2)

The Selection Committee for appointment to the posts specified in column (1) of the Table below shall consist of the Vice-Chancellor, a nominee of the Chancellor, a nominee of the Government and the persons specified in the corresponding entry in column (2) of the said Table and in the case of appointment of a Professor, Assistant Professor, Reader or Lecturer in a department, where there is no Head of the Department, shall also consist of a person nominated by the Standing Committee on Academic Affairs from among its members:-

The Table

(1)

(2)

Professor, Assistant Professor or Reader

(i)

The Head of the Department concerned, if he is a Professor,

(ii)

One Director or a Dean or a Professor to be nominated by the Vice-Chancellor;

(iii)

Three persons not in the service of the University, nominated by the Syndicate, from out of a panel of names recommended by the Standing Committee on Academic Affairs

for their special knowledge of, or interest in, the subject with which the Professor, Assistant Professor or Reader will be concerned.

Lecturer

(i)

The Head of the Department concerned;

(ii)

One Professor to be nominated by the Vice-Chancellor;

(iii)

Two persons not in the service of the 40 University nominated by the Syndicate, from out of a panel of names recommended by the Standing Committee on Academic Affairs for their Special knowledge of, or interest in, the subject with which the Lecturer will be concerned.

Librarian

(i)

Two persons not in the service of the University, who have special knowledge of the subject of Library Science of Library Administration, to be nominated by the Syndicate.

(ii)

One person, not in the service of the University, nominated by the Syndicate.

Explanation I. - Where the appointments are being made for an interdisciplinary project, the Head of the Project shall be deemed to be Head of the Department concerned.

Explanation II.- The Professor to be nominated shall be the Professor concerned with the specialist for which the selection is being made and that the Vice-Chancellor shall consult the Head of the Department and the Dean of Faculty before nominating the Professor.

Explanation III.- At least three out of four or two out of three members, as the case may be, concerned with the specialist.referred to under column

(2)

shall be present at the Selection Committee meeting.

(3)

The Vice-Chancellor shall preside at the meetings of a Selection Committee.

(4)

The meetings of a Selection Committee shall be convened by the Vice-Chancellor.

(5)

The procedure to be followed by a Selection Committee in making recommendations shall be laid down in the ordinances.

(6)

If the Syndicate is unable to accept the recommendations made by a Selection Committee, it shall record its reasons and submit the case to the Chancellor for final orders.

(7)

Appointments to temporary posts shall be made in the manner indicated below:-

(i)

If the temporary vacancy is for a duration longer than one academic session, it shall be filled on the advice of the Selection Committee in accordance with the procedure indicated in the foregoing provisions:

Provided that if the Vice-Chancellor is satisfied that in the interest of work it is necessary to fill the vacancy, the appointment may be made on a temporary basis by a local Selection Committee referred to in sub-clause(ii) for a period not exceeding six months;

(ii)

If the temporary vacancy is for a period less than a year, an appointment to such vacancy shall be made on the recommendation of a local Selection Committee consisting of the Dean on the Faculty concerned, the Head of the Department and a nominee of the Vice-Chancellor:

Provided that if the same person holds the offices of the Dean and the Head of the Department, the Selection Committee may consist of two nominees of the Vice-Chancellor;

Provided further that in case of sudden casual vacancies in teaching posts caused by death or any other reason, the Dean may, in consultation with the Head of the Department concerned, make a temporary appointment for a month and report to the Vice-Chancellor and the Registrar about such appointment.

(iii)

No teacher appointed temporarily shall, if he is not recommended by a regular Selection Committee for appointment under this Act, be continued in service on such temporary employment unless he is subsequently selected by a local Selection Committee or a regular Selection Committee, for a temporary or permanent appointment, as the case may be.

45.

Term and conditions of service of Heads of Departments.

(1)

Each Department of the University shall have a Head who shall be a Professor or Director and whose duties and functions and terms and conditions of appointment shall be prescribed by the ordinances:

Provided that if there is more than one Professor in any Department, the Head of the Department shall be appointed in the manner prescribed by the ordinances;

Provided further that in a Department where there is no Professor, an Assistant Professor or a Reader may be appointed as Head of the Department in the manner prescribed by the ordinances.

(2)

It shall be open to a Professor or an Assistant Professor or a Reader, to decline the offer of appointment as Head of the Department.

(3)

A person appointed as Head of the Department shall hold office as such for a period of three years and shall be eligible for reappointment.

(4)

A Head of the Department may resign his office at any time during his tenure of office.

(5)

A Head of the Department shall perform such functions as may be prescribed by the ordinances.

46.

Deans of Faculties.

(1)

Every Dean of Faculties shall be appointed by the Vice-Chancellor from among the Professors in the Faculty for a period of three years and he shall be eligible for reappointment:

Provided that a Dean on attaining the age of fifty-eight years shall cease to hold office as such;

Provided further that, if at any time there is no Professor in a Faculty, the Vice-Chancellor shall exercise the powers of the Dean of the Faculty.

(2)

When the office of the Dean is vacant or when the Dean is by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of his office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(3)

The Dean shall be the Head of the Faculty and shall be responsible for the conduct and maintenance of the standards of teaching and research in the Faculty. The Dean shall have such other functions as may be prescribed by the ordinances.

(4)

The Dean shall have the right to be present and to speak at any meeting of the Boards of Studies or committees of the Faculty, as the case may be, but shall not have the right to vote thereat unless he is a member thereof.

Chapter X

Miscellaneous

47.

Filling of casual vacancies.

- All casual vacancies among the members (other than ex-officio members) of any authority or other body of the University shall be filled as soon as conveniently may be, by the person or body, who or which, nominated or elected the member whose place has become vacant and the person nominated or elected to a casual vacancy shall be a member of such authority or body for the residue of the term for which the person whose place he fills would have been a member:

Provided that vacancies arising by efflux of time among elected members of any authority or other body of the University may be filled at elections which may be fixed by the Vice-Chancellor to take place on such days not earlier than two months from the date on which the vacancies arise, as he thinks fit:

Provided further that no casual vacancy shall be filled if such vacancy occurs within six months before the date of the expiry of the term of the member of any authority or other body of the University.

48.

Proceedings of the University authorities and bodies invalidate by vacancies.

- No act or proceeding of any authority or other body of the University shall be invalidated merely by reason of the existence of any vacancy or of a(sic) defect or irregularity in the election or appointment of a member of a(sic) authority of other body of the University or of any defect or irregularity in such act of proceeding not affecting the merits of the case or on the ground only th(sic) the Senate did not meet twice in any year.

49.

Removal from membership of University.

(1)

The Syndicate may

(a)

on the recommendation of not less than two thirds of the members of the Syndicate, remove by an order in writing made in this behalf the name of any person from the register of graduates; or.

(b)

remove by an order in writing made in this behalf any person from membership of any authority of the University by a resolution passed by a majority of the total membership of the syndicate any by a majority of not less than two-thirds of the members of the Syndicate present and voting at the meeting, if such person has been convicted by a criminal court for an offence which in the opinion of the Syndicate involves moral turpitude or if he has been guilty of gross misconduct and for the same reason, the Syndicate may with-draw any degree or diploma conferred on or granted to that person by the University.

(2)

The Syndicate may also by an order in writing made in this behalf remove any person from the membership of any authority of the University if he becomes of unsound mind or

[deaf mute; Omitted by Tamil Nadu Universities Laws (Third Amendment) Act, 2022]

or has applied to be adjudicated, or has been adjudicated, as an insolvent.

(3)

No action under this section shall be taken against any person unless he has given a reasonable opportunity to show cause against the action proposed to be taken.

(4)

A copy of every order passed under sub-section (1) or sub-section (2), as the case may be, shall, as soon as may be after it is so passed, be communicated to the person concerned in the manner prescribed by regulations.

50.

Disputes as to constitution of University authorities and bodies.

- If any question arises whether any person has been duly elected or nominated as, or is entitled to be, a member of any authority of the University or other body of the University, the question shall be referred to the Chancellor whose decision thereon shall be final.

51.

constitution of Committees.

- All the authorities of the University shall have power to constitute or reconstitute committees and to delegate to them such of their powers as they deem fit. Such committees shall, save as otherwise provided, consist members of the authority concerned and of such other persons, if any, as the authority in each case may think fit.

52.

Power to obtain Information.

- Notwithstanding anything contained in this Act, or in any other law for the time being in force, the Government may, by order in writing, call for any information from the University on any matter relating to the affairs of the University and the University shall, if such information is available with it, furnish the Government with such information within a reasonable period:

Provided that in the case of information which the University considers confidential, the University may place the same before the Chancellor and the Pro-Chancellor.

53.

Registration of graduates.

(1)

On and after the notified date every person ordinarily resident within the University area, who

(i)

has been for at least three years a graduate of any University in the territory of India; or

(ii)

is a registered graduate of any University in the territory of India.

Shall be entitled to have his name entered in the register of graduates maintained under this Act, for a period of five years on payment of such fee and subject to such conditions as may be prescribed by the statutes.

(2)

All applications for registration under sub-section (1) shall be sent to the Registrar together with the prescribed fee and such proof of qualifications as may be prescribed by the statutes.

(3)

The Registrar shall, on receipt of an application made under sub-section (2) and after making such enquiry as he deems fit, enter in the register of graduates the name of the applicant.

(4)

Every person whose name has been entered in the register of graduates under sub-section (3) shall be entitled to have such entry renewed every five years on application made in that behalf to the Registrar within such time, in such manner and on payment of such fees as may be prescribed by the statutes.

54.

Appointment of first Vice-Chancellor.

- Notwithstanding anything contained in sub-section (1) of section (sic) within three months from the date of publication of this Act in the Tamil Nadu Government Gazette, the first Vice-Chancellor shall be appointed by the Government on a salary to be fixed by them for a period not exceeding three years and on such other conditions as they think fit:

Provided that a person appointed as first Vice-Chancellor shall retire from office if, during the term of his office, he completes the age of sixty- five years.

55.

Appointment of first Registrar.

- Notwithstanding anything in sub-section (1) of section 13, with three months from the date of publication of this Act in the Tamil Nadu Government Gazette, the first Registrar shall be appointed by the Government on a salary to be fixed by them for a period not exceeding three years and on such other conditions as they think fit:

Provided that the person appointed as first Registrar shall retire from office if, during the term of his office, he completes the age of fifty-eight years.

56.

Transitory power of the first Vice-Chancellor.

(1)

It shall be the duty of the first Vice-Chancellor to make arrangements for constituting the Senate, the Syndicate and the Standing Committee on Academic Affairs and such other authorities of the University within six months after the notified

date or such longer period, not exceeding one year, as the Government may, by notification, direct.

(2)

The first Vice Chancellor shall, in constitution with the Government, make such rules as may be necessary for the functioning of the University.

(3)

The authorities constituted under sub-section (1) shall commence to exercise their functions on such date as Government may, by notification, specify in this behalf.

(4)

It shall be the duty of the first Vice-Chancellor to draft such statutes, ordinances and regulations as may be necessary and submit them to the respective authorities competent to deal with them for their disposal. Such statutes, ordinances and regulations, when framed, shall be published in the Tamil Nadu Government Gazette.

(5)

Notwithstanding anything contained in this Act and the statutes and until such time an authority is duly constituted, the first Vice-Chancellor may appoint any officer or constitute any committee temporarily to exercise and perform any of the powers and duties of such authority under this Act and the statutes.

57.

Transfer of service of certain employees of Madurai Kamaraj University to the University.

(1)

Every person who, immediately before the notified date, is serving in connection with the affairs of the Madurai - Kamaraj University in the University Centre at Palayamkottai shall, as from the said date, become an employee of the Manonmaniam Sundaranar University and shall cease to be an employee of the Madurai-Kamaraj University.

(2)

(a)

As soon as may be after the notified date, the Government may, after consulting the Vice-Chancellors of the Madurai-Kamaraj University and the Manonmaniam Sundaranar University, direct by general or special order that such of the employees of the Madurai-Kamaraj University as are specified in such order shall stand allotted to serve in connection with the affairs of the Manonmaniam Sundaranar University, with effect on and from such date as may be specified in such order:

Provided that no such direction shall be issued in respect of any such person without his consent for such allotment.

(b)

With effect on and from the date specified in the order under clause (a), the person specified in such order shall become employees of the Manonmaniam Sundaranar University and shall cease to be employees of the Madurai Kamaraj University.

(3)

Every person referred to in sub-section (1) or sub-section (2) shall hold office under the Manonmaniam Sundaranar University by the same tenure, at the same, remuneration and upon the same terms and conditions and with the same rights and privileges as to pension or gratuity if any, and other matters as he would have held the same on the notified date or the date specified in the order under sub-section (2), as the case may be, as if this Act had not been passed.

(4)

The liability to pay pension and gratuity to the persons referred to in sub-sections (1) and (2) shall be the liability of the Manonmaniam Sundaranar University.

58.

Transfer to accumulations in provident fund and other like funds.

(1)

The sums at the credit of the Provident fund accounts of the persons referred to in sub-section (1) of section 57 as on the notified date and of the persons referred to in sub-section (2) of that section as on the date specified in the order under clause (a) of the said sub-section (2) shall be transferred (sic) the Manonmaniam Sundaranar University and the liability in respect of the said (sic) provident fund accounts shall be the liability of the Manonmaniam Sundaranar University.

(2)

There shall be paid to the Manonmaniam Sundaranar University out of the accumulations in the superannuation fund

and other like funds, if any, of the Madurai-Kamaraj University such amounts as have been credited to the superannuation fund or other like funds, if any, on behalf of the persons referred to in sub-sections (1) and (2) of section 57. The amount so paid shall from part of the superannuation fund or other like funds, if any, that may be established by the Manonmaniam Sundaranar University for the benefit of its employees.

59.

Payment of certain amount by Madurai- Kamaraj University.

(1)

The Madurai-Kamaraj University shall, out of its funds as on the notified date, pay to the Manonmaniam Sundaranar University such amount as the Government may, in consultation with the Madurai-Kamaraj University, specify.

(2)

The amount payable under sub-section (1) shall be in addition to the amounts payable by the Madurai-Kamaraj University to the Manonmaniam Sundaranar University under section 58.

60.

Tamil Nadu Act

33 of 1965

not to apply.

(1)

Subject to the provisions of sub-section (2) to (9), the Madurai- Kamaraj University Act, 1965 (hereafter in this section in referred to as the 1965 (Tamil Nadu Act

33 of 1965

). Act) shall with effect on and from the notified date cease to apply in respect of the areas to which the provisions of this Act extend.

(2)

Such cessor shall not affect.

(a)

The Previous operation of the 1965 Act in respect of the areas to which the provisions of this Act extend; or

(b)

any penalty, forfeiture or punishment incurred in respect of any offence committed against the 1965 Act; or

(c)

any investigation, legal proceeding or remedy in respect of such penalty, forfeiture or punishment, and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if this Act had not been passed.

(3)

Notwithstanding anything contained in sub-section (1), all statutes, ordinances and regulations made under the 1965 Act and in force on the notified date, shall in so far as they are not inconsistent with this Act, continue to be in force in the University area until they are replaced by the statutes, ordinances and regulations to be made under this Act.

(4)

Notwithstanding anything contained in this Act, the statutes, ordinances and regulations continued in force under sub-section (3) or made under this Act, every person who, immediately before the notified date, was a student of a college within the University area affiliated to or approved by the Madurai-Kamaraj University and of the Departments of that University or was eligible for any of the examinations of the Madurai-Kamaraj University shall be permitted to complete his course of study in the Manonmaniam Sundaranar University, and the Manonmaniam Sundaranar University shall make arrangements for the instruction, teaching and training for such students for such period and in such manner as may be determined by the Manonmaniam Sundaranar University in accordance with the course of study in the Madurai- Kamaraj University and such students shall, during such period, be admitted to the examinations held or conducted by the Madurai-Kamaraj University and the corresponding degree, diploma or other academic distinctions of the Madurai- Kamaraj University shall be conferred upon the qualified students on the result of such examinations, by the Madurai-Kamaraj University.

(5)

All property, whether movable or immovable, including lands, buildings, equipments, books and library and all rights of whatsoever kind owned by or vested in, or held in trust by immediately before the notified date, the Madurai-Kamaraj

University at the University Centre at Palayamkottai as well as all liabilities legally subsisting against that University at the Centre shall stand transferred to, and vest in, the Manonmaniam Sundaranar University.

(6)

All colleges including oriental colleges, within the University area which, immediately before the notified date.

(a)

continue to be affiliated to, or recognized by, the Madurai- Kamaraj University, and

(b)

provide courses of study for admission to the examination for degrees of the Madurai-Kamaraj University, shall be deemed to be colleges affiliated to the Manonmaniam Sundaranar University under this Act and the provisions of this Act shall, as far as may be, apply accordingly.

(7)

All colleges within the University area which, immediately before the notified date, continue to be recognised by the Madurai-Kamaraj University as oriental colleges providing courses of study for admission to the examinations of that University, for titles and diplomas, shall be deemed to be colleges approved by the Manonmaniam Sundaranar University under this Act and the provisions of this Act shall, as far as may be, apply accordingly.

(8)

All hostels within the University area which continue to be recognized by the Madurai-Kamaraj University, immediately before the notified date, shall be deemed to be hostels recognised by the Manonmaniam Sundaranar University under this Act and the provisions of this Act shall, as far as may be, apply accordingly.

(9)

Subject to the provisions of sub-section (2) but without prejudice to the provisions of sub-sections (3) to (7), anything done or any action taken before the notified date under any provision of the 1965 Act in respect of any area to which the provision of this Act extend shall be deemed to have been done or taken under the corresponding provision of this Act and shall continue to have effect accordingly unless and until superseded by anything done or any action taken under the corresponding provision of this Act.

61.

The Librarian.

(1)

The Librarian shall be a whole-time officer of the University appointed by the Syndicate on the recommendation of the Selection Committee constituted for the purpose, for such period and on such terms and conditions as may be prescribed.

(2)

The Librarian shall exercise such powers and perform such duties as may be assigned to him by the Syndicate.

62.

Special mode of appointment.

(1)

The Syndicate may invite a person of high academic distinction and professional attainments to accept a post of Professor in the University on such terms and conditions as it deems fit, and on the person agreeing to do so, appoint him to the post.

(2)

The Syndicate may appoint a teacher or any other member of the academic staff working in any other University or organization for undertaking a joint project in accordance with the manner laid down in the ordinances.

63.

Report on affiliated Colleges.

- The Syndicate shall, at the end of every three years from the notified date submit a report to the Government on the condition of affiliated and approved colleges within the University area. The Government shall take such action on it as they deem fit.

64.

Power to remove difficulties.

(1)

If any difficulty arises as to the first constitution or reconstitution of any authority of the University after the notified date

or otherwise in giving effect to the provisions of this Act, the Government may, but notification, ma(sic) such provision, not inconsistent with the provisions of this Act, as may appear to them to be necessary or expedient for removing the difficulty:

Provided that no such notification shall be issued after the expiry of five years from the date of establishment of the University under section 3.

(2)

Every notification issued under sub-section (1) or under any other provisions of this Act shall, as soon as possible after it is issued, be placed on the table of the Legislative Assembly, and if, before the expiry of the session in which it is so placed or the next session, the Assembly makes any modification in any such notification or the Assembly decides that the notification should not be issued, the notification shall thereafter have effect only in such modified form or be of no effect, as the case may be so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that notification.

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